

STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE: REGINA MAXINE ROUSSIN)
License No. 068-0000150)

Docket No. MH05-0507

STIPULATION AND CONSENT ORDER

STIPULATION

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Clinical Mental Health Counselors pursuant to 3 V.S.A. §§ 129, 129a, 814; 26 V.S.A. Chapter 65 and; the rules of the Board (the "MHR") and the Vermont Office of Professional Regulation.
2. The Respondent Regina Maxine Roussin, is licensed in the State of Vermont as a Licensed Mental Health Counselor under license number 068-0000150. The Respondent's license was originally issued on or about February 18, 1993 and expires on January 31, 2009.
3. The Respondent is currently 64 years of age and no longer plans to practice as a clinical mental health counselor.
4. Amended Charges were filed against the Respondent in the above captioned matter on or about July 24, 2008. Attachment A.
5. The Respondent and the State agree that this Stipulation is final and binding.
6. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation. The Respondent's mental capacity is not diminished in anyway at the time she signs this Stipulation.
7. Respondent voluntarily enters into this Stipulation after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation.
8. The Parties agree that, notwithstanding any statutory provision to the contrary, this Stipulation and Consent Order is a matter of public record and may be disclosed pursuant to the procedures outlined under 1 V.S.A. §§ 316 and 317.
9. Since the Respondent no longer intends to practice as a Clinical Mental Health Counselor in the State of Vermont and in the interests of justice the State and the Respondent agree as follows:

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Prosecuting Attorney
Office of
Professional Regulation
9 Baldwin Street
Montpelier, VT
05609-1107

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ORDER

10. The Respondent agrees to **never seek reactivation or attempt to renew** her license, number 068-0000150, issued by the State of Vermont. The Respondent further agrees that the Secretary of State's Office of Professional Regulation, the licensing agency for Clinical Mental Health Counselors, will indicate on the list of Clinical Mental Health Counselors that her license was **voluntarily inactivated** as of the date of entry of this order.
11. The Respondent agrees not to seek reactivation, reinstatement or renewal of her clinical mental health license and agrees not to apply for any clinical mental health license or any other type of mental health professional license in the future. If the Respondent attempts to seek reactivation, reinstatement or renewal of her registered clinical mental health license or attempts to apply for any other mental health professional license she agrees that her application will be automatically denied pursuant to this Stipulation and Consent Order.
12. The Respondent agrees to waive all rights of appeal of this Stipulation and Consent Order.
13. In consideration for the concessions outlined in paragraphs 10 through 12 above, the State agrees to **dismiss without prejudice** the Amended Specification of Charges in the above captioned case dated July 24, 2008 (Attached). This dismissal shall be executed only after the Board of Allied Mental Health Practitioners has agreed to and signed this Stipulation and Consent Order.
14. Notwithstanding any statutory provision to the contrary, this Stipulation and Consent Order is a matter of public record and may be disclosed pursuant to the procedures outlined under 1 V.S.A. §§ 316 and 317.
15. This Stipulation and Consent Order will remain part of the Respondent's licensing file and may be used for the purposes as outlined in paragraphs 10-12 above and for any other purpose allowed by law. It is the intent of the parties that this stipulation should be construed as a contractual resolution to a disputed matter.

AGREED TO:

REGINA MAXINE ROUSSIN
RESPONDENT

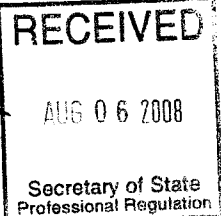
Dated: 08/01/08
08/01/08

By: Regina M. Roussin
Regina Maxine Roussin

STATE OF VERMONT

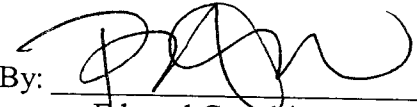


Prosecuting Attorney
Office of
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9 Baldwin Street
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STATE OF VERMONT
SECRETARY OF STATE

Dated: 8-21-08

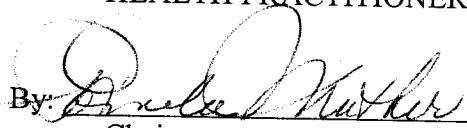
By:  for

Edward G. Adrian
State Prosecuting Attorney

APPROVED AND SO ORDERED:

Dated: 9/18/08

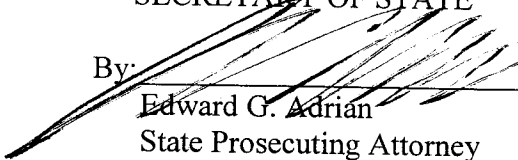
BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

By: 

Chairperson Am JV

Date of Entry: 9/23/08

STATE OF VERMONT
SECRETARY OF STATE

By: 
Edward G. Adrian
State Prosecuting Attorney

Dated: 8/1/08 ¹² 8/4/08

APPROVED AND SO ORDERED:

BOARD OF NURSING

Dated: _____

By: _____

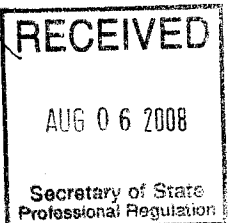
Date of Entry: _____

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STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE: REGINA MAXINE ROUSSIN)
License No. 068-0000150)

Docket No. MH05-0507

AMENDED SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and makes the following Charges against the Respondent, Regina Maxine Roussin, LCMHC:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Clinical Mental Health Counselors pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65; the Administrative Rules for Clinical Mental Health Counselors (the "MHR"); and the rules of the Vermont Office of Professional Regulation.
2. Conduct which evidences unfitness to practice clinical mental health counseling is unprofessional conduct. 26 V.S.A. § 3271(a)(3).
3. Practicing the profession when medically or psychologically unfit to do so is unprofessional conduct. 3 V.S.A. § 129a(a)(5).
4. Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession is unprofessional conduct. 3 V.S.A. § 129a(a)(3).
5. The Board may refer to the National Board for Certified Counselors ("NBCC") "Code of Ethics," as amended, as a guide to the standards of practice for Clinical Mental Health Counselors. MHR 6.6.
6. To protect public confidence in the counseling profession, certified counselors avoid behavior that is clearly in violation of accepted moral and legal standards. NBCC Code of Ethics, Section A(13).

Statement of Facts

7. Regina Maxine Roussin (the "Respondent") of Milton, Vermont is a licensed clinical mental health counselor holding license number 068-0000150, issued by the State of Vermont. The license was originally issued on February 18, 1993 and is set to expire on January 31, 2009.

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ATTACHMENT A

8. E.R. is the four-year-old grandchild of the Respondent and is one of six grandchildren with whom the Respondent at one time lived.
9. On or about November 7, 2007, Detective Jannine Wright of the Chittenden Unit for Special Investigations issued Respondent an affidavit charging the Respondent with domestic assault and cruelty to children. The affidavit contained, in part, the following:
- a. DCF Investigator Shannon Morton had initiated an investigation of Respondent prior to June 4, 2007. Although there were many accounts of physical and mental abuse of all of Respondent's grandchildren, E.R. was the main subject of the investigation; the incidents involving E.R. likely occurred during the months of March or April, 2007. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(5); and the NBCC Code of Ethics, Section A(13).
 - b. During the course of investigation, Investigator Morton discovered that E.R. had been physically tied to his bed by Respondent, and that E.R. had possibly sustained a bruise on his head from Respondent. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(3); and the NBCC Code of Ethics, Section A(13).
 - c. On or about May 10, 2007, E.R. was removed from Respondent's home by court order. On or about May 24, 2007, the remaining children – except for the eldest, N.R., a 17-year-old – were removed from Respondent's home. This is in violation of 26 V.S.A. § 3271(a)(3) and the NBCC Code of Ethics, Section A(13).
 - d. On or about June 1, 2007, a new report was filed with DCF reporting that Respondent had pinched E.R.'s penis until he screamed when Respondent was angry with him. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(3); and the NBCC Code of Ethics, Section A(13).
 - e. On or about June 27, 2007, Detective Wright and Investigator Morton met with E.R., who showed them a scar on his hand and said it was from Respondent burning him with an electrical outlet. E.R. stated that Respondent burned him twice with an outlet. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(3); and the NBCC Code of Ethics, Section A(13).
 - f. On or about August 6, 2007, Detective Wright met with the Respondent at the Milton Police Station. Respondent stated that E.R. liked to play with electrical outlets. To deter him from doing so, she lit a match, blew it out, and then touched it to E.R.'s skin. Respondent stated it was an "instant cure" and she did not have to do it again. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(3); and the NBCC Code of Ethics, Section A(13).

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In this same interview with Respondent, Detective Wright questioned Respondent about the report of P.R., Respondent's son, who stated that he saw Respondent lift

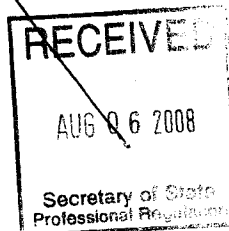
E.R. by the back of the head and bang E.R.'s head into sheetrock. P.R. said Respondent stated this was an "acceptable means of correcting head banging" and that when P.R. intervened to stop Respondent, Respondent accused P.R. of "questioning her education." In response to Detective Wright, Respondent stated she might have done that to E.R., but that it was not meant to hurt him, and that it was only playing. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(3); and the NBCC Code of Ethics, Section A(13).

- h. In this same interview with Respondent, Respondent admitted to tying E.R. into his bed by his hands and feet so that he would not get up in the middle of the night and run around. Respondent stated she tied E.R. with cloth diapers and would untie him after he fell asleep; Respondent stated E.R. never fought her about this. Respondent stated that after a few times of using the diapers, she no longer needed to do this to E.R., but then placed ropes on E.R.'s bed as a reminder to him. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(3); and the NBCC Code of Ethics, Section A(13).
 - i. In this same interview, Detective Wright asked Respondent if there was ever a time when she would pinch E.R.'s penis as a matter of punishment. Respondent replied, "Do you know how painful that would be? No. That's very sensitive." This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(3); and the NBCC Code of Ethics, Section A(13).
 - j. On or about August 17, 2007, Detective Wright met with L.R., Respondent's daughter. L.R. stated that she has seen "flares" in Respondent, and that Respondent has been deteriorating physically and mentally. L.R. stated that Ti.R., one of Respondent's grandchildren, told L.R. that on one occasion, Respondent was in the bathroom screaming at E.R. and reached forward and pinched E.R.'s penis and that E.R. screamed "bloody murder." Furthermore, L.R. stated that when Respondent tied E.R. to his bed, she would tie him "spread eagle" and that E.R. would scream when he was being tied. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. § 129a(a)(3); and the NBCC Code of Ethics, Section A(13).
10. On May 2, 2008, Respondent was convicted of the criminal charge of simple assault in Vermont District Court. Respondent received a six to 12 month sentence with all but 20 days suspended. Respondent was placed on probation and ordered to undergo a mental health and physical evaluation. Moreover, Respondent is prohibited from having contact with minors under the age of 16 without the permission of her probation officer. Respondent's criminal probation also requires her to adhere to any restrictions placed on her professional license. This is in violation of 26 V.S.A. § 3271(a)(3); 3 V.S.A. §§ 129a(a)(5), 129a(a)(3); and the NBCC Code of Ethics, Section A(13).

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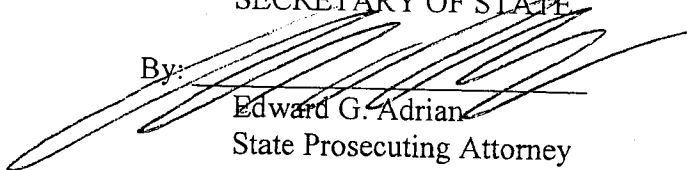
Charges

By committing the above act(s), circumstance(s), and/or omission(s), the Respondent has engaged in unprofessional conduct by violating the Vermont Statutes and Rules of the Board, as enumerated above in paragraphs 2-7.

WHEREFORE, the State of Vermont respectfully requests that the Respondent's mental health counselor license number 068-0000150 should be revoked, suspended, or otherwise disciplined.

DATED at Montpelier, Vermont this 24th day of July, 2008.

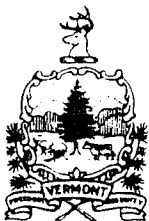
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By: 

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